Legal Document Summary

Summary language: English · Original document: English · 15 of 683 sentences · 22715 → 504 words · 10/26/2026, 10:07:48 PM

Key details

Court	Equivalent citations: AIR 2014 SUPREME COURT 187, 2013 AIR SCW 6386,
Parties	Lalita Kumari vs Govt.Of U.P.& Ors on 12 November, 2013
Dates mentioned	11.05.2008; 16.09.2008; 03.02.2013; 7.20.11; 12 November, 2013; 30th August, 2012
Sections / Acts	Section 154 – Code of Criminal Procedure, 1973; Section 154; Section 156, 157; Section 190; Section 156; Section 154(1); Section 4(2), 5; Section 154(2)
Outcome	Acquitted

Summary

BACKGROUND / FACTS

- The provision of Section 154 of the Code is mandatory and the concerned officer is duty bound to register the case on the basis of information disclosing a cognizable offence.
- The mandate of Section 154 of the Code is that at the stage of registration of a crime or a case on the basis of the information disclosing a cognizable offence, the Lalita Kumari vs Govt.Of U.P.& Ors on 12 November, 2013
- This can also be seen from the fact that Section 151 of the Code allows a police officer to arrest a person, even before the commission of a cognizable offence, in order to prevent the commission of that offence, if it cannot be prevented otherwise.
- At the same time, Section 154 was Lalita Kumari vs Govt.Of U.P.& Ors on 12 November, 2013
- i) Registration of FIR is mandatory under Section 154 of the Code, if the information discloses commission of a cognizable offence and no preliminary inquiry is permissible in such a situation.

COURT'S FINDINGS

- Learned senior counsel pleaded that in the light of Article 21, provisions of Section 154 of the Code must be read down to mean that before registering an FIR, the police officer must be satisfied that there is a prima facie case for investigation.
- The Law Commission, in its Report, concluded that though the offence under Section 498-A could be made compoundable, however, the extent of misuse was not established by empirical data, and, thus, could not be a ground to denude the provision of its efficacy.
- Thus, FIR is to be recorded in the FIR Book, as mandated under Section 154 of the Code, and it is not Lalita Kumari vs Govt.Of U.P.& Ors on 12 November, 2013
- Thus there was no basis for a police officer to suspect the commission of an offence which he was empowered under Section 156 of the Code to investigate.ƒ
- Section 154 of the Code thus casts a statutory duty upon the police officer to register the case, as disclosed in the complaint, and then to proceed with the investigation.
- Therefore, conducting an investigation into an offence after registration of FIR under Section 154 of the Code is the €procedure established by lawƒ and, thus, is in conformity with Article 21 of the Constitution.
- It is thus seen that this Court has repeatedly held in various decided cases that registration of FIR is mandatory if the information given to the police under Section 154 of the Code discloses the commission of a cognizable offence.
- Therefore, we are of the cogent view that mandatory registration of FIRs under Section 154 of the Code will not be in contravention of Article 21 of the Constitution as purported by various counsel.
- Therefore, in view of various counter claims regarding registration or non-registration, what is necessary is only that the information given to the police must disclose the commission of a cognizable offence.

ORDER / OPERATIVE PORTION

- Many a complainant prefer recourse to criminal process as a tool for pressurising the medical professional for extracting uncalled for or unjust compensation.

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